

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Constantinos Stivaros	Team: Team # 2	CCRB Case #: 201103296	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 03/15/2011 12:31 PM	Location of Incident: 187th Street and Crescent Avenue	18 Mo. SOL 9/15/2012	Precinct: 48		
Date/Time CV Reported Tue, 03/15/2011 4:12 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 03/15/2011 4:12 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Alexander Taveras	07949	947952	048 PCT
2. POM Starlin Dominguez	02943	935169	048 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Israel Sanchez	02913	914404	048 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Alexander Taveras	Abuse: PO Alexander Taveras searched § 87(2)(b)	A . Unsubstantiated
B . POM Starlin Dominguez	Abuse: PO Starlin Dominguez searched § 87(2)(b)	B . Unsubstantiated

Case Summary

On March 15, 2011, § 87(2)(b) called the CCRB and filed a complaint. On March 15, 2011, § 87(2)(b) was riding his bicycle on the sidewalk of East 187th Street and Cambreleng Avenue in the Bronx and was stopped by three police officers and issued two summonses. The following allegations resulted:

Allegation A – Abuse of Authority: PO Alexander Taveras searched § 87(2)(b)

Allegation B – Abuse of Authority: PO Starlin Dominguez searched § 87(2)(b)

§ 87(2)(g)

It is recommended that **Allegations A-B** be closed as **unsubstantiated**.

Mediation was presented to § 87(2)(b) on March 22, 2011 but he did not want to mediate his complaint § 87(2)(b)

Results of Investigation

Civilian Statement(s)

Complainant: § 87(2)(b)

- § 87(2)(b) is a § 87(2)(b)-old white male, § 87(2)(b) with dark brown hair and dark brown eyes. § 87(2)(b)

CCRB Testimony

On March 16, 2011, § 87(2)(b) provided a statement over the phone (encl. B3). On March 22, 2011, § 87(2)(b) appeared at the CCRB to be interviewed (encl. B4-8). § 87(2)(g)

On March 15, 2011 at approximately 12:25 p.m., § 87(2)(b) exited his house at § 87(2)(b) with his motorized bicycle and headed towards East 187th Street in the Bronx. He was wearing blue jeans, a black bubble jacket, and a t-shirt. His left jacket pocket was empty and his right jacket pocket contained a cell phone, a small bottle of hand sanitizer, and another object he could not recall. He was riding his bicycle on the sidewalk all the way down to the intersection. When he got to the intersection, an officer in uniform in an unmarked dark blue vehicle with license plate number EM8768 motioned for § 87(2)(b) to stop. § 87(2)(b) complied.

Two officers then exited the vehicle. PO Alexander Taveras, identified via the summons issued to § 87(2)(b) approached § 87(2)(b) on the right side, and PO2 whose badge number § 87(2)(b) provided as 2943 and named Dominguez, identified as PO Starlin Dominguez via investigation, approached § 87(2)(b)'s left side. PO Taveras asked § 87(2)(b) where he was coming from, what he was doing and for his ID. PO Taveras then frisked § 87(2)(b)'s left jacket pocket and then searched it. Meanwhile PO Dominguez frisked and then searched § 87(2)(b)'s right jacket pocket. § 87(2)(b)'s pants pockets were also frisked but not searched by the same officers. The officers did not recover any contraband. In his phone statement, § 87(2)(b) stated that he believed the officers were searching for narcotics. § 87(2)(b) told the officers they could not search him for anything but weapons and quoted Terry vs. Ohio to the officers. PO Taveras then told § 87(2)(b) he was being technical and was going to write him a summons. This took approximately three minutes.

PO Taveras then crossed the street with § 87(2)(b)'s ID and entered a marked police van that had approximately seven uniformed officers inside. PO Taveras returned with a summons for § 87(2)(b) on the sidewalk. § 87(2)(b) asked why he was given a summons when the other cyclists were not but the officers did not tell him why. Sgt. Israel Sanchez then stepped out of the unmarked vehicle and told § 87(2)(b) that the officers routinely look for drugs and weapons and that is why they frisk individuals. § 87(2)(b) obtained Sgt. Sanchez's name at the stationhouse when he asked who PO Taveras' supervisor was. Sgt. Sanchez also stated that his officers made mistakes and that he would correct them. He also said that he would put his foot in his officers' "ass" if they did not do the right thing. § 87(2)(b) then asked the two officers for their badge numbers. The officers then said they were going to write § 87(2)(b) another summons because he was getting technical. All the officers then got back in the vehicle.

§ 87(2)(b) was unsure if the officers were joking or if they were going to write him another summons so he began to leave the scene. As he was riding his bicycle away, the unmarked police vehicle pulled up beside him and an officer gave § 87(2)(b) a second summons through the car window and then left the scene. § 87(2)(b) got the second summons for § 87(2)(b).

Attempts to Contact Civilians

Artuso's Bakery

On March 22, 2011, Artuso's Bakery was called and the manager stated that no video footage from the security cameras that could have caught the incident was available. In addition, two female employees of Artuso's named § 87(2)(b) and § 87(2)(b) stated that they witnessed cyclists being stopped all day in front of the store but they did not make any FADO allegations.

NYPD Statement(s):

Subject Officer: PO ALEXANDER TAVERAS

- PO Taveras is a § 87(2)(b)-old Hispanic male, § 87(2)(b) with brown hair and brown eyes.
- PO Taveras was assigned to Conditions with Sgt. Sanchez, PO Dominguez, and PO Buyukdag in an unmarked vehicle and in uniform from 9:30 a.m. to 6:05 p.m.

Memo Book

At 12:31 p.m., one male, § 87(2)(b) was observed riding a motorized bike on § 87(2)(b) without pedaling. The individual was stopped on the corner of § 87(2)(b) and issued C-summons § 87(2)(a) 160.50 and B-summons § 87(2)(a) 160.50 (encl. C1-3).

Summons

§ 87(2)(a) 160.50

§ 87(2)(a) 160.50

§ 87(2)(a) 160.50

§ 87(2)(a) 160.50

§ 87(2)(a) 160.50

CCRB Testimony

On May 9, 2011, PO Taveras appeared at the CCRB to be interviewed (encl. C4-5). On June 27, 2011, PO Taveras appeared at the CCRB to be interviewed where he added the noted details to his first interview (encl. C6-7). On March 15, 2011, PO Taveras was working conditions with PO Starlin Dominguez, PO Mehmet Buyukdag, and Sgt. Israel Sanchez patrolling for quality of life issues. The four officers were in a marked police car and were driving on East 187th Street. On June 27, 2011, PO Taveras was in an unmarked vehicle. Near the intersection of § 87(2)(b) § 87(2)(b) was observed coming down § 87(2)(b) on his bicycle on the sidewalk without pedaling the bicycle. PO Taveras noticed a motor below the seat of the bicycle above the rear wheel. The officers decided to stop § 87(2)(b) and approached him at the northwest corner of 187th Street and § 87(2)(b). They approached to issue him a summons for § 87(2)(a) 160.50.

Immediately upon approaching § 87(2)(b) PO Taveras frisked his pants, waistband, and jacket for his own safety. During his June 27, 2011 interview, PO Taveras stated that he feared for his safety because in the 48th Precinct, there are many robberies committed by individuals on bikes. He also added that § 87(2)(b) had a bulge in his right pants pocket. Since PO Taveras suspected § 87(2)(b) of being one of the robbery suspects, coupled with the bulge in his clothing, he believed that § 87(2)(b) could be armed. PO Taveras then asked § 87(2)(b) why he was riding his bike on the sidewalk. § 87(2)(b) said he did not want to get hit by cars.

During the frisk of § 87(2)(b) PO Taveras felt a hard object in the front right pocket of § 87(2)(b)'s jacket that felt like keys. PO Taveras asked § 87(2)(b) if the object was a weapon and § 87(2)(b) said he did not know. PO Taveras then went into the pocket and pulled out the keys, looked at them, and then put them back. No other officers ever frisked or searched § 87(2)(b). In his June 27, 2011 statement, PO Taveras stated that he felt the keys during the frisk in § 87(2)(b)'s right pant's pocket and after § 87(2)(b)'s evasive answers; he put his hand in § 87(2)(b)'s pocket to confirm the hard object was keys but he never took them out of the pocket.

An unrelated marked police van was parked nearby. Approximately two minutes into the interaction, PO Taveras went into the police van and ran a check for warrants for § 87(2)(b) and wrote two summonses for § 87(2)(b). One summons was for § 87(2)(a) 160.50 and the other summons was for § 87(2)(a) 160.50. PO Taveras then gave § 87(2)(b) the summonses and left the scene. As he was leaving he could see § 87(2)(b) just standing on the sidewalk looking at the summonses.

Witness Officer: SGT. ISRAEL SANCHEZ

- *Sgt. Sanchez is a § 87(2)(b)-old Hispanic male, § 87(2)(b), with brown hair and brown eyes.*
- *Sgt. Sanchez was assigned as the conditions supervisor for the conditions team and was in an unmarked vehicle with PO Taveras in uniform from 9:30 a.m. to 6:30 p.m.*

Memo Book

Sgt. Sanchez did not have any memo book entries in regards to the incident (encl. C11-12).

CCRB Testimony

On June 21, 2011, Sgt. Sanchez appeared at the CCRB to be interviewed (encl. C13-14). On March 15, 2011, Sgt. Sanchez was in the Commanding Officer's vehicle patrolling for quality of life issues which is part of his conditions assignment. At East 187th Street and Crescent Street,

which is a busy street with a lot of pedestrian traffic, Sgt. Sanchez noticed § 87(2)(b) riding his bicycle on the sidewalk. PO Taveras decided to stop him and issue him a summons for riding on the sidewalk.

The officers drove up next to § 87(2)(b) and PO Taveras interacted with him. Sgt. Sanchez did not pay much attention to the interaction and did not see PO Taveras ever frisk or search § 87(2)(b). Sgt. Sanchez stated during his interview that officers are allowed to frisk individuals that are being issued summonses. He did not hear any of the conversation between § 87(2)(b) and PO Taveras. Additionally, there were no bulges on § 87(2)(b) and he was never suspected of being armed and no other criminal activity observed other than riding a bicycle on the sidewalk.

Subject Officer: PO STARLIN DOMINGUEZ

- PO Dominguez is a § 87(2)(b)-old Hispanic male, § 87(2)(b), with black hair and brown eyes.
- PO Dominguez was assigned to conditions with the conditions team in a marked van and in uniform from 9:30 a.m. to 6:05 p.m.

Memo Book

At 12:00 p.m. PO Dominguez was on meal and resumed patrol at 1:00 p.m (encl. C15-16).

CCRB Testimony

On May 17, 2011 PO Dominguez appeared at the CCRB to be interviewed (encl. C17-18) PO Dominguez was working conditions on a team with eight other officers in uniform. Between 12:00 p.m. and 1:00 p.m. he was on meal. PO Dominguez stated he was not present for the stop of § 87(2)(b) and did not recall ever stopping § 87(2)(b). PO Dominguez was not sure if he was working with PO Taveras that day. He was the only officer with the surname Dominguez that works with PO Taveras because the other PO Dominguez in the command works night tours. The summons was shown to PO Dominguez and a narrative of the incident was given to PO Dominguez and he vaguely remembers stopping an individual with a motorized bicycle. He has stopped many people on motorized bicycles but did not remember stopping § 87(2)(b) specifically. PO Dominguez explained that frisks are only conducted if necessary, for example if a bulge is visible on an individual. PO Dominguez did not know if § 87(2)(b) was frisked or if there was a bulge on § 87(2)(b)'s clothing.

NYPD Document(s)

Roll Call

Sgt. Sanchez was assigned to Conditions with PO Mendez, PO Buyukdag, PO Dominguez, PO Odusote, PO Sajduk, PO Poidomani, PO Taveras, and PO Oconner (encl. D1-15).

Summons/Arrest for Incident and Disposition

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]

Status of Civil Proceedings

- § 87(2)(b) has not filed a Notice of Claim with the City of New York as of June 28, 2011 with regard to the incident (encl. E1).

Civilian(s) Criminal History

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[redacted]
[redacted]

Civilian(s) CCRB History

- This is the first CCRB complaint filed by [§ 87(2)(b)] (encl. A3).

Subject Officer(s) CCRB History

- PO Taveras has been a member of the service for two years and there are no substantiated CCRB allegations against him (encl. A1).
- PO Dominguez has been a member of the service for seven years and there are no substantiated CCRB allegations against him (encl. A2).

Conclusion

Identification of Subject Officer(s)

PO Taveras admitted to the entire interaction with [§ 87(2)(b)] PO Dominguez was identified by [§ 87(2)(b)] by name and badge number.

Allegations not Pled

[§ 87(2)(g)]
[redacted]
[redacted]

[§ 87(2)(g)]
[redacted]

[§ 87(2)(g)]
[redacted]
[redacted]

Investigative Findings and Recommendations

Allegation A – Abuse of Authority: PO Alexander Taveras searched [§ 87(2)(b)]

It is undisputed that PO Taveras searched [§ 87(2)(b)] In this case, PO Taveras stated that the bulge in [§ 87(2)(b)]'s pockets felt like keys from the outside, When PO Taveras asked [§ 87(2)(b)] if the bulge was a weapon, [§ 87(2)(b)] responded “I don’t know.” [§ 87(2)(g)]

[redacted]
[redacted]

[redacted] Sgt. Sanchez’s testimony did not corroborate if [§ 87(2)(b)] had a bulge or if [§ 87(2)(b)] stated he did not know if he had a weapon [§ 87(2)(g)]

[redacted] It is recommended that
Allegation A be closed as unsubstantiated.

Allegation B – Abuse of Authority: PO Starlin Dominguez searched [§ 87(2)(b)]

[§ 87(2)(b)] alleged that PO Dominguez was also involved in the search of his pockets along with PO Taveras. [§ 87(2)(b)] provided PO Dominguez’s badge number when he filed the complaint over the phone with the CCRB but believed his name was Sanchez. During his official statement,

he again repeated PO Dominguez's badge number but stated that his name could possibly be Dominguez. PO Dominguez stated that he was not on scene during the interaction with § 87(2)(b) because he was at the stationhouse on meal. His memo book corroborates this. PO Taveras stated that he was working with PO Dominguez on the date of incident but he maintains that he was the only officer that interacted with § 87(2)(b) § 87(2)(g)

it is recommended that **Allegation B be closed as unsubstantiated.**

Team: _____

:

Investigator: _____	_____	_____
Signature	Print	Date

Supervisor: _____	_____	_____
Title/Signature	Print	Date

Reviewer: _____	_____	_____
Title/Signature	Print	Date

Reviewer: _____	_____	_____
Title/Signature	Print	Date